

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1233

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO THE CONSTITUTIONAL COURTS ACT; AMENDING CHAPTER 16, TITLE 1, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 1-1626, IDAHO CODE, TO PROVIDE THAT NO STATE COURT SHALL ENFORCE, CONSIDER, OR APPLY ANY JUDGMENT, DECREE, RULING, OR DECISION OF ARBITRATION BASED ON CERTAIN FORMS OF RELIGIOUS OR CULTURAL LAW; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 16, Title 1, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 1-1626, Idaho Code, and to read as follows:

1-1626. CONSTITUTIONAL COURTS ACT. No state court at any level of jurisdiction or authority shall enforce, consider, or apply any judgment, decree, ruling, or decision of arbitration based on a body of religious or cultural law that does not fully support and conform with the rights of citizens as defined in the United States constitution and the constitution of the state of Idaho.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.